

BY-LAWS
SHAMROCK HOMEOWNERS ASSOCIATION, INC.
(A South Dakota Non-Profit Corporation)

ARTICLE I: OFFICES

The principal office of the corporation shall be located at William F. Nordermeer's home at 29212 Shamrock Avenue, Pierre, South Dakota 57501. The corporation may have such other offices, either within or without the State of South Dakota, as the Board of Directors may determine from time to time.

ARTICLE II: MEMBERS

Each owner or owners of a lot in the Shamrock Subdivision to the City of Pierre, South Dakota, shall be a member of the Shamrock Homeowners Association, Inc. (hereafter Association). Multiple ownership of any lot, whether jointly or as tenants in common, shall be considered as one membership. Each member in good standing shall be entitled to one vote on each matter submitted to a vote of the members. Sale of a member's ownership interest in the Subdivision shall automatically terminate that owner's membership in the Association provided, however, that such member shall remain responsible for any unpaid Association dues, assessments, or other charges theretofore accrued and unpaid.

Membership in this Association is not transferable or assignable, except that as an incident of ownership such membership shall be conveyed as a part of the ownership of an interest in Shamrock real estate.

ARTICLE III: MEETINGS OF MEMBERS

Section 1. Annual Meeting. An annual meeting of the members shall be held at a location to be selected by the Board of Directors on the 2nd Tuesday of June in each year, beginning with the year 2002, at 7:00 p.m., for the purpose of electing directors and for the transaction of such other business as may come before the meeting.

Section 2. Special Meetings. Special meetings of the members may be called by the President, the Board of Directors, or not less than ten percent (10%) of the members having voting rights, at a place designated by the Board of Directors.

Section 3. Notice of Meeting. Written or printed notice stating the place, day and hour of any meeting of members shall be delivered personally or by mail, to each member entitled to vote at such meeting, not less than fourteen (14) days before the date of such meeting. In case of a special meeting or when required by statute or these By-Laws, the purpose or purposes for which the meeting is called shall be stated in the notice. If mailed, the notice of a meeting shall be deemed delivered when deposited in the United States mail and addressed to the member at the member's address as it appears on the records of the Association, with postage thereon prepaid. Notice to any one of joint or multiple owners of one lot shall constitute notice to all such owner members.

Section 4. Informal Action by Members. Any action that may be taken at a meeting of members, may be taken without a meeting if a consent in writing, setting forth the actions so taken, is signed by all of the members entitled to vote with respect to the subject matter thereof.

Section 5. Quorum. Members holding twenty-five percent (25%) of the votes that may be cast at any meeting shall constitute a quorum at such meeting. If a quorum is not present at a meeting of members, a majority of the members present may adjourn the meeting from time to time without further notice.

Section 6. Proxies. At any meeting of members, a member entitled to vote may vote by proxy executed in writing by the members or his duly authorized attorney in fact.

ARTICLE IV: BOARD OF DIRECTORS

Section 1. General Powers. The affairs of the corporation shall be managed by its Board of Directors and shall include the right to take such legal action as may otherwise be necessary to enforce the provisions of the protective covenants affecting the Shamrock Subdivision. Directors need not be residents of the State of South Dakota and shall be members of the Association.

Section 2. Number of, Tenure, and Qualifications. The number of directors shall be five (5). Directors shall be elected at the annual meeting of members, and the term of office of each Director shall be three (3) years. Alternating terms shall be established with two members elected the first year and one member the second and third year of each three-year period.

Section 3. Regular Meetings. A regular meeting of the Board of Directors shall be held without any other notice than this By-Law immediately after, and at the same place as, the annual meeting of the members. The Board of Directors must provide, by resolution, the time and place for holding additional regular meetings without further notice than such resolution.

Section 4. Special Meetings. Special meetings of the Board of Directors may be called by or at the request of the President, or any two directors, and shall be held at such place as the directors may determine.

Section 5. Notice. Notice and proposed agenda of any special meeting of the Board of Directors shall be given at least two (2) days previously thereto by written notice delivered personally or sent by mail to each Director's address as shown by the records of the Association. If mailed, such notice shall be deemed to be delivered when deposited in the United States mail in a sealed envelope so addressed, with postage thereon prepaid. Any Director may waive notice of any meeting. The attendance of a Director at any meeting shall constitute a waiver of notice of such meeting, except where a Director attends a meeting for the express purpose of objecting to the transaction of any business because

the meeting was not lawfully called or convened. The business to be transacted at the meeting need not be specified in the Notice or Waiver of Notice of such meeting.

Section 6. Quorum. A majority of the Board of Directors shall constitute a quorum for the transaction of business at any meeting of the Board, but if less than a majority of the members are present at any meeting, a majority of the directors present may adjourn the meeting from time to time without further notice.

Section 7. Board Decisions. The act of a majority of the directors present or by way of telephone at a meeting at which a quorum is present shall be the act of the Board of Directors.

Section 8. Vacancies. Any vacancy occurring on the Board of Directors and any directorship to be filled by reason of an increase in the number of directors shall be filled by the Board of Directors. A director appointed to fill a vacancy shall serve for the unexpired term to the predecessor director in office.

Section 9. Compensation. Directors shall not receive any stated salaries or compensation for their services, but shall be entitled to be reimbursed for all actual expenses incurred in the performance of their duties and authorized and approved by the Board of Directors.

ARTICLE V: OFFICERS

Section 1. Officers. The officers of the Association shall be a President, Vice-President, and Secretary/Treasurer and selected from members only. The Board of Directors may elect or appoint such other officers, including one or more assistant secretary/treasurers, as it shall deem desirable, such officers to have the authority and perform the duties prescribed, from time to time, by the Board of Directors. Any two or more offices may be held by the same person, except the offices of President and Secretary/Treasurer.

Section 2. Election and Term of Office. The officers of the Association shall be elected annually by the Board of Directors at the regular meeting of the Board. If the election of officers is not held at such meeting, such election shall be held as soon thereafter as is convenient. New offices may be created and filled at any meeting of the Board of Directors. Each officer shall hold office for a term of one year or until his successor to that position has been duly elected and qualified.

Section 3. Removal. Any officer elected or appointed by the Board of Directors whenever in its judgment the best interest of the Association would be served thereby.

Section 4. Vacancies. A vacancy in any office because of death, resignation, removal, disqualification, or otherwise, may be filled by the Board of Directors for the unexpired portion of the term.

Section 5. Powers and Duties. The several officers shall have such powers and shall perform such duties as may from time to time be specified in resolutions or other directives of the Board of Directors. In the absence of such specifications, each officer shall have the powers and authority and shall perform and discharge the duties of officers of the same title serving a non-profit corporation having the same or similar general purpose and objectives as this Association.

ARTICLE VI: COMMITTEES

Section 1. Designation of Committees. The Board of Directors, by resolution adopted by a majority of the directors in office, may designate one or more committees, each of which shall include two or more directors. Except as otherwise provided in such resolution, members of each such committee shall be members of the Association, and the President of the Association shall appoint the members thereof subject to approval of the Board.

Section 2. Authority of Committees. Committees shall not have or exercise the authority of the Board of Directors in the management of the Association and committee decisions and recommendations shall be advisory and made to the Board for final action.

Section 3. Standing Committees. There are hereby established the following standing committees:

- a. Road Maintenance/Snow Removal.

ARTICLE VII: FINANCIAL AFFAIRS

Section 1. Contracts. The Board of Directors may authorize any officer or officers, or agent or agents of the Association, in addition to the officer so authorized by these By-Laws, to enter into any contract or execute and deliver any instrument in the name of and on behalf of the Association, and such authority may be general or may be confined to specific instances.

Section 2. Checks, Drafts and Money Orders. All checks, drafts, or orders for payment of money, notes, or other evidences of indebtedness issued in the name of the Association, shall be signed by such officer or officers, or agent or agents of the Association, and in such matter as shall from time to time be determined by resolution of the Board of Directors. In the absence of such determination by the Board of Directors, such instruments shall be signed by the Secretary/Treasurer and countersigned by the President or Vice-President of the Association.

Section 3. Deposits. All funds of the Association shall be deposited from time to time to the credit of the Association in such banks, trust companies, or other depositories as the Board of Directors may select.

Section 4. Gifts. The Board of Directors may accept on behalf of the Association any contribution, gift, bequest, or device for any purpose of the Association.

ARTICLE VIII: BOOKS AND RECORDS

The Association shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of its members, Board of Directors, committees having and exercising any of the authority of the Board of Directors, and shall keep at the principal office a record of the names and addresses of the members entitled to vote. All books and records of the Association may be inspected by any member, or his agent or attorney, for any purpose at any reasonable time.

ARTICLE IX: FISCAL YEAR

The fiscal year of the Association shall be a calendar year.

ARTICLE X: DUES AND MEMBERSHIPS

Section 1. Annual Dues and Membership Fees. The Board of Directors shall determine from time to time the amount of annual dues payable to the Association, and shall send appropriate notice thereof to the members of the amount set.

Section 2. Payment of Dues. Dues shall be paid in advance and shall commence on November 1, 200__, and shall be delinquent if not paid by December 1, 200__. Thereafter, dues shall be payable in advance on November 1 of each year and shall be delinquent if not paid by December 1 of each year. Dues of a new member shall be pro-rated from the first day of the month of membership.

Section 3. Default and Termination of Membership. When any member is in default in the payment of dues for a period of one month from the beginning of the period from which dues became payable, such membership shall be suspended by the Board of Directors and such member shall not be entitled to vote until the default is cured.

ARTICLE XI: WAIVER OF NOTICE

Whenever notice is required to be given under the provisions of South Dakota law or the Articles or By-Laws of the Association, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be deemed equivalent to the giving of such notice.

ARTICLE XII: AMENDMENT OF BY-LAWS

These By-Laws may be altered, amended, or repealed, and new By-Laws may be adopted by a majority of the directors present at a regular meeting or any special meeting of the Board of Directors provided that at least seven (7) days written notice is given of the intent to alter, amend, or repeal or to adopt new By-Laws at such meeting or by vote of the members at any regular or special meeting.

DIRECTORS' CERTIFICATE AS TO BY-LAWS

We, the undersigned, being all of the directors of SHAMROCK HOMEOWNERS ASSOCIATION, INC., do hereby adopt the above and foregoing By-Laws, and as directors, do hereby certify that said By-Laws were duly adopted as the By-Laws of said corporation on the _____ day of _____, 2003.

William F. Noordermeer

Glenn J. Brinkman

William B. Beastro

Robert W. Moodie

Thomas M. Maher